

RESEARCH AND DEVELOPMENT AGREEMENT

BETWEEN:

The **UNIVERSITY OF AUCKLAND**, a university constituted under the University of Auckland Act 1961 and a tertiary education provider under the Education and Training Act 2020, of 22 Princes Street, Auckland, New Zealand ("**Client**")

AND:

[REDACTED]
A company incorporated under the laws of New Zealand

[REDACTED]
("**Developer**")

RECITALS

WHEREAS the Client desires to engage the Developer to [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]

WHEREAS the Developer represents that it has the necessary expertise, resources, and capabilities to perform the research and development work described herein;

WHEREAS the parties wish to set forth the terms and conditions governing their relationship with respect to such research and development work;

NOW THEREFORE, in consideration of the mutual covenants and agreements contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

1. DEFINITIONS AND INTERPRETATION

1.1 Definitions

In this Agreement, unless the context otherwise requires:

"Agreement" means this Research and Development Agreement, including all schedules and appendices attached hereto, as may be amended from time to time in accordance with the terms hereof;

"Confidential Information" means all non-public, proprietary, or confidential information disclosed by one party to the other, whether orally, in writing, or in any other form, including but not limited to technical data, trade secrets, know-how, research, product

plans, products, services, customers, customer lists, markets, software, developments, inventions, processes, formulas, technology, designs, drawings, engineering, hardware configuration information, marketing, finances, or other business information;

“Deliverables” means all work product, materials, documentation, reports, prototypes, designs, specifications, software, hardware, and other items to be delivered by the Developer to the Client under this Agreement, as more particularly described in Schedule A (Work Plan);

“Intellectual Property” means all intellectual property rights of any kind, including but not limited to patents, patent applications, trademarks, trademark applications, service marks, trade names, copyrights, trade secrets, know-how, inventions, processes, formulas, source and object codes, data, programs, other works of authorship, discoveries, improvements, and other proprietary rights;

“Milestone” means a specific deliverable or achievement point as set forth in Schedule A (Work Plan);

“Project” means the research and development work to be performed by the Developer as described in Section 2 and Schedule A (Work Plan);

“Work Plan” means the detailed work plan attached hereto as Schedule A, which forms an integral part of this Agreement.

1.2 Interpretation

In this Agreement: - References to clauses, schedules, and appendices are references to clauses, schedules, and appendices of this Agreement; - Headings are for convenience only and do not affect interpretation; - Words importing the singular include the plural and vice versa; - References to any statute or statutory provision include any subordinate legislation made under it and any modification, extension, or re-enactment thereof; - The word “including” shall mean “including without limitation.”

2. PURPOSE AND SCOPE OF WORK

2.1 Project Description

The Developer agrees to perform research and development work for the Client involving the design and development of a datalogging system associated with [REDACTED]
[REDACTED]
[REDACTED] (the “Project”).

2.2 Scope of Work

The scope of work is outlined in Schedule A of this Agreement.

2.3 Performance Standards

The Developer shall perform all work in accordance with: - Applicable New Zealand standards and regulations; - Quality assurance protocols as mutually agreed between the parties; - Environmental and safety requirements applicable to the intended use.

3. DEVELOPER'S OBLIGATIONS AND BEST ENDEAVOURS

3.1 Best Endeavours Commitment

The Developer hereby covenants and agrees that it will apply its best endeavours to meet all milestones, deliverables, and performance standards set forth in this Agreement and Schedule A (Work Plan). For the purposes of this Agreement, "best endeavours" means the Developer shall:

- a) Dedicate appropriate and sufficient resources, including qualified personnel, equipment, and facilities, to the performance of the Project;
- b) Use all reasonable efforts, skill, and diligence that would be expected from a competent provider of research and development services in similar circumstances;
- c) Employ industry best practices and maintain professional standards throughout the performance of the work;
- d) Promptly notify the Client of any circumstances that may materially affect the Developer's ability to meet agreed milestones or deliverables;
- e) Take all reasonable steps to mitigate any delays or obstacles that may arise during the course of the Project;
- f) Maintain regular communication with the Client regarding project progress and any issues that may impact successful completion.

3.2 Performance Standards

The Developer warrants that all work performed under this Agreement will be: - Performed in a professional and workmanlike manner; - Completed in accordance with the specifications and requirements set forth herein; - Free from defects in materials and workmanship; - Compliant with all applicable laws, regulations, and industry standards.

3.3 Progress Reporting

The Developer shall provide the Client with regular progress reports as specified in Schedule A (Work Plan), including but not limited to: - Monthly written progress reports detailing work completed, milestones achieved, and upcoming activities; - Immediate notification of any material changes to project scope, timeline, or deliverables; - Access to work-in-progress materials and documentation as reasonably requested by the Client.

3.4 Key Personnel

The Developer will allocate the named individuals identified in Schedule A (Work Plan) to perform the work. The Developer will inform the Client of any changes to the availability of Key Personnel, who will have the right to review and approve any changes.

4. LIABILITY

4.1 Each party:

- acknowledges that the Services are being supplied and acquired in trade;
- agrees that the provisions of the Consumer Guarantees Act 1993 and sections 9, 12A and 13 of the Fair Trading Act will not apply to this contract; and
- agrees that it is fair and reasonable that it is bound by the provisions of this clause 4.1.

4.2 Except where expressly stated otherwise, [REDACTED] disclaims all warranties, either express or implied, including, without limitation, warranties of merchantability and fitness for a particular purpose.

4.3 Neither party, or their employees, agents or contractors, will be liable to the other for any actions, damages, claims, liabilities, costs, expenses, or losses in any way arising in relation to this contract that exceed an amount equal to the Fee paid by the Client to [REDACTED] under this contract.

4.4 In no event will either party, their employees, agents or contractors be liable for consequential, special, indirect, incidental, punitive or exemplary damages, costs, expenses or losses (including, without limitation, lost profits and opportunity costs).

4.5 Clauses 4.3 and 4.4 apply regardless of the form of action, damage, claim, liability, cost, expense or loss, whether in contract, statute, tort (including, without limitation, negligence) or otherwise. None of the exclusions or limitations will have the effect of limiting or excluding any form of liability where such liability cannot be so limited or excluded under applicable law.

4.6 The Client understands and agrees that the Services provided may include advice and recommendations, but all decisions in connection with the implementation of such advice and recommendations will be the responsibility of, and made by, the Client. The Client will hold [REDACTED] harmless against any claim for costs or damages arising from that implementation.

4.7 [REDACTED] indemnifies the Client, and its personnel against all loss, damage, cost and expense arising from third party claims, and against fines, penalties and other sanctions imposed by any government or regulatory authority, in relation to [REDACTED] performance of the Services.

4.8 Clause 4.8 does not apply to the extent that any loss, damage, cost or expense arises as a result of any indemnified person's negligence, breach of law or breach of this Agreement (including any breach of warranty).

5. PAYMENT TERMS

5.1 Payment Schedule

Payment for the Project shall be made in accordance with Schedule B (Payment Schedule) attached hereto and incorporated by reference. All payments are subject to the following terms:

- a) **Milestone-Based Payments:** Payments shall be made upon successful completion and acceptance of specified milestones as detailed in Schedule B;
- b) **GST:** All amounts specified in this Agreement are exclusive of Goods and Services Tax (GST). GST shall be added to all invoices at the applicable rate;
- c) **Payment Terms:** Unless otherwise specified, all invoices shall be paid on 20th of the month following receipt of invoice by the Client;
- d) **Final Payment:** Final payment shall be made upon successful delivery and acceptance of all deliverables and completion of the Project to the Client's reasonable satisfaction.

5.2 Invoicing Requirements

The Developer shall submit invoices that include: - Detailed description of work completed and milestones achieved; - Reference to the applicable milestone or deliverable from Schedule B; - GST registration number and appropriate GST calculations; - Supporting documentation as reasonably required by the Client.

5.3 Payment Disputes

In the event of a payment dispute, the Client shall pay any undisputed portion of an invoice within the specified payment terms and notify the Developer in writing of the specific basis for any disputed amounts within seven (7) days of receipt of the invoice.

6. INTELLECTUAL PROPERTY

6.1 Ownership of Developed IP

Subject to full payment of all fees and charges due under this Agreement, all Intellectual Property developed, created, conceived, or reduced to practice by the Developer in the

course of performing the Project, including but not limited to inventions, discoveries, improvements, designs, specifications, software, documentation, and know-how (collectively, the “**Developed IP**”), shall be and remain the sole and exclusive property of the Client.

6.2 Assignment of Rights

The Developer hereby assigns, transfers, and conveys to the Client all right, title, and interest in and to the Developed IP, including all patent rights, copyrights, trade secret rights, and other proprietary rights therein. This assignment shall be effective immediately upon creation of such Developed IP, subject to the condition precedent of full payment as specified in Section 5.1.

6.3 Pre-Existing IP

Each party shall retain ownership of any Intellectual Property that existed prior to the commencement of this Agreement (“**Pre-Existing IP**”). The Developer hereby grants to the Client a non-exclusive, royalty-free, perpetual license to use any of the Developer’s Pre-Existing IP that is incorporated into or necessary for the use of the Developed IP, solely for the purposes contemplated by this Agreement.

6.4 Third-Party IP

The Developer warrants that, based on its best intent and knowledge at the time of performance, the Developed IP will not knowingly infringe upon any third-party Intellectual Property rights. The Developer represents that it will conduct reasonable due diligence to avoid infringement of known third-party Intellectual Property rights during the development process. However, the Developer does not provide any indemnification or guarantee against potential third-party intellectual property claims that may arise from the use of the Developed IP.

6.5 Moral Rights

To the extent permitted by law, the Developer waives all moral rights in the Developed IP in favour of the Client.

6.6 Further Assurances

The Developer agrees to execute such additional documents and take such additional actions as may be reasonably requested by the Client to evidence, perfect, or enforce the Client’s ownership rights in the Developed IP.

6.7 Disclosure of Inventions

The Developer shall promptly disclose to the Client in writing all inventions, discoveries, improvements, and other intellectual property created or conceived during the performance of this Agreement, whether or not such intellectual property is patentable or subject to copyright protection.

6.8 Patent Applications

If the Client elects to file patent applications for any Developed IP, the Developer agrees to cooperate fully with such patent application process, including providing necessary documentation, executing required forms, and making inventors available for examination or testimony as reasonably required.

7. CONFIDENTIALITY

7.1 Confidentiality Obligations

Each party acknowledges that it may have access to Confidential Information of the other party. Each party agrees to:

- a) Hold all Confidential Information in strict confidence;
- b) Not disclose Confidential Information to any third party without the prior written consent of the disclosing party;
- c) Use Confidential Information solely for the purposes of this Agreement;
- d) Take reasonable precautions to protect the confidentiality of such information, using at least the same degree of care that it uses to protect its own confidential information, but in no event less than reasonable care.

7.2 Exceptions

The obligations set forth in Section 7.1 shall not apply to information that: a) Is or becomes publicly available through no breach of this Agreement; b) Was rightfully known by the receiving party prior to disclosure; c) Is rightfully received by the receiving party from a third party without breach of any confidentiality obligation; d) Is independently developed by the receiving party without use of or reference to the Confidential Information; e) Is required to be disclosed by law or court order, provided that the receiving party gives the disclosing party reasonable advance notice of such required disclosure.

7.3 Return of Information

Upon termination of this Agreement or upon request by the disclosing party, each party shall promptly return or destroy all documents, materials, and other tangible manifestations of Confidential Information in its possession or control.

7.4 Survival

The obligations under this Section 6 shall survive termination of this Agreement for a period of five (5) years.

8. DISPUTE RESOLUTION

8.1 Negotiation

In the event of any dispute, controversy, or claim arising out of or relating to this Agreement or the breach, termination, or invalidity thereof (a “**Dispute**”), the parties shall first attempt to resolve such Dispute through good faith negotiations between senior representatives of each party who have authority to settle the Dispute.

8.2 Mediation

If the parties are unable to resolve the Dispute through negotiation within thirty (30) days after written notice of the Dispute, the parties agree to submit the [REDACTED] Mediation Rules then in effect. The mediation shall be conducted in Auckland, New Zealand, unless the parties agree otherwise in writing.

8.3 Costs

Each party shall bear its own costs and expenses in connection with any dispute resolution proceedings, except that the costs of mediation (including the mediator’s fees) shall be borne equally by the parties.

9. TERMINATION

9.1 Termination for Convenience

Either party may terminate this Agreement at any time upon thirty (30) days’ prior written notice to the other party.

9.2 Termination for Cause

Either party may terminate this Agreement immediately upon written notice if: a) The other party materially breaches this Agreement and fails to cure such breach within thirty (30) days after written notice thereof; b) The other party becomes insolvent, makes an assignment for the benefit of creditors, files a petition in bankruptcy, or has a petition in bankruptcy filed against it; c) The other party ceases to carry on business in the ordinary course.

9.3 Effect of Termination

Upon termination of this Agreement:

- a) **Payment for Completed Work:** The Client shall pay the Developer for all work satisfactorily completed prior to the effective date of termination on a pro-rata basis according to the milestones achieved and deliverables accepted;

- b) **Return of Materials:** Each party shall promptly return to the other party all Confidential Information, documents, materials, and property belonging to such other party;
- c) **Survival of Obligations:** Termination shall not affect any rights or obligations that have accrued prior to termination, and the provisions of Sections 6 (Intellectual Property), 7 (Confidentiality), 8 (Dispute Resolution), and 10 (General Provisions) shall survive termination.

9.4 No Penalty for Termination

Neither party shall be liable to the other for any damages solely as a result of terminating this Agreement in accordance with its terms.

10. GENERAL PROVISIONS

10.1 Governing Law

This Agreement shall be governed by and construed in accordance with the laws of New Zealand, without regard to its conflict of laws principles.

10.2 Jurisdiction

The parties hereby submit to the exclusive jurisdiction of the courts of New Zealand for the resolution of any disputes arising under this Agreement, except as otherwise provided in Section 7 (Dispute Resolution).

10.3 Entire Agreement

This Agreement, including all schedules and appendices attached hereto, constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior and contemporaneous agreements, understandings, negotiations, and discussions, whether oral or written, between the parties relating to such subject matter.

10.4 Amendment

This Agreement may be amended only by a written instrument signed by both parties.

10.5 Severability

If any provision of this Agreement is held to be invalid, illegal, or unenforceable, the validity, legality, and enforceability of the remaining provisions shall not be affected or impaired thereby.

10.6 Waiver

No waiver of any provision of this Agreement shall be deemed or shall constitute a waiver of any other provision. No waiver shall be effective unless it is in writing and signed by the party to be charged with such waiver.

10.7 Assignment

Neither party may assign this Agreement or any rights or obligations hereunder without the prior written consent of the other party, except that the Client may assign this Agreement to any affiliate or in connection with a merger, acquisition, or sale of all or substantially all of its assets.

10.8 Force Majeure

Neither party shall be liable for any failure or delay in performance under this Agreement that is due to fire, flood, earthquake, elements of nature, acts of God, acts of war, terrorism, riots, civil disorders, rebellions, or other causes beyond the reasonable control of such party.

10.9 Health and Safety

██████ undertakes to comply with the provisions of the Health and Safety at Work Act 2015 insofar as those provisions relate to the performance by ██████ of any obligations on ██████ under this Agreement. ██████ does not assume any obligations as the Client's agent that may be imposed upon the Client pursuant to the ██████ or any other applicable health and safety laws in relation to this contract.

10.10 Notices

All notices required or permitted under this Agreement shall be in writing and shall be deemed given when delivered personally, sent by confirmed facsimile transmission, sent by confirmed electronic mail, or three (3) days after being sent by registered or certified mail, return receipt requested, to the addresses set forth in the preamble to this Agreement or to such other address as either party may specify in writing.

10.11 Counterparts

This Agreement may be executed in counterparts, each of which shall be deemed an original and all of which together shall constitute one and the same instrument.

11. EXECUTION

IN WITNESS WHEREOF, the parties have executed this Agreement as of the date last signed below.

University of Auckland

By: _____
Name: [Name]
Title: [Title]
Date: _____